

STATE OF NEW YORK

1699--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 14, 2025

Introduced by M. of A. ROSENTHAL, BENEDETTO, SIMONE -- read once and referred to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to increasing the penalties for leaving the scene of an accident involving an electric scooter without reporting in the first and second degrees and creating the offenses of leaving the scene of an accident involving a bicycle with electric assist without reporting in the first and second degrees

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 2 of section 1287 of the vehicle and traffic
2 law, as added by section 10 of part XX of chapter 58 of the laws of
3 2020, is amended to read as follows:

4 2. Leaving the scene of an incident involving an electric scooter
5 without reporting in the second degree is a [~~violation~~] class A misde-
6 meanor.

7 § 2. Subdivision 2 of section 1288 of the vehicle and traffic law, as
8 added by section 10 of part XX of chapter 58 of the laws of 2020, is
9 amended to read as follows:

10 2. Leaving the scene of an incident involving an electric scooter
11 without reporting in the first degree is a class [~~B-misdemeanor~~] E felo-
12 ny.

13 § 3. The vehicle and traffic law is amended by adding two new sections
14 1244 and 1245 to read as follows:

15 § 1244. Leaving the scene of an incident involving a bicycle with
16 electric assist without reporting in the second degree. 1. Any person
17 eighteen years or older operating a bicycle with electric assist who,
18 knowing or having cause to know, that physical injury, as defined in
19 subdivision nine of section 10.00 of the penal law, has been caused to

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

LBD03218-03-5

1 another person, due to the operation of such bicycle with electric
2 assist by such person, shall, before leaving the place where the said
3 physical injury occurred, stop, and provide their name and residence,
4 including street and street number, to the injured party, then such
5 person shall report said incident as soon as physically able to the
6 nearest police station or judicial officer.

7 2. Leaving the scene of an incident involving a bicycle with electric
8 assist without reporting in the second degree is a class A misdemeanor.

9 § 1245. Leaving the scene of an incident involving a bicycle with
10 electric assist without reporting in the first degree. 1. Any person age
11 eighteen years or older operating a bicycle with electric assist who,
12 knowing or having cause to know, that serious physical injury, as
13 defined in subdivision ten of section 10.00 of the penal law, has been
14 caused to another person, due to the operation of such bicycle with
15 electric assist by such person, shall, before leaving the place where
16 the said serious physical injury occurred, stop, and provide their name
17 and residence, including street and street number, to the injured party,
18 if practical, and also to a police officer, or in the event that no
19 police officer is in the vicinity of the place of said injury, then such
20 person shall report said incident as soon as physically able to the
21 nearest police station or judicial officer.

22 2. Leaving the scene of an incident involving a bicycle with electric
23 assist without reporting in the first degree is a class E felony.

24 § 4. This act shall take effect on the sixtieth day after it shall
25 have become a law. Effective immediately, the addition, amendment and/or
26 repeal of any rule or regulation necessary for the implementation of
27 this act on its effective date are authorized to be made and completed
28 on or before such effective date.